

SENATE No. 717

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to strengthen the control of contagious and infectious diseases in the Commonwealth.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 717

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 717) of Julian Cyr for legislation to strengthen the control of contagious and infectious diseases in the Commonwealth. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 595 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to strengthen the control of contagious and infectious diseases in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17S the following section:-

3 Section 17T: (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:-

5 “HIV”, human immunodeficiency virus.

6 “HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of
7 HIV by the federal Food and Drug Administration, including any ancillary or support
8 health

service determined by the secretary of health and human services that is necessary to: (1)
ensure

that such a drug is prescribed or administered to a person who is not infected with HIV
and has

no medical contraindications to the use of such a drug; and (2) monitor such a person to
ensure

the safe and effective ongoing use of such a drug through: (i) an office visit; (ii)
laboratory

testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management
and

adherence counseling; (v) or any other health service specified as part of comprehensive
HIV

prevention drug services by the United States Department of Health and Human Services,
the

United States Centers for Disease Control and Prevention or the United States Preventive
Services Task Force, or an equivalent state-authorized body with responsibility to identify health
services that are components of comprehensive HIV prevention drug services.

(b) The commission shall provide any coverage for an HIV prevention drug to any active
or retired employee of the commonwealth who is insured under the group health insurance
commission: (1) without requiring (i) any cost-sharing, including co-payments or co-insurance,
or any deductible, and (ii) prior authorization, step therapy or any other protocol that could

restrict or delay the dispensing of any HIV prevention drug; and (2) shall not refuse, reject, or deny a prescription for any covered HIV prevention drug on the basis of the type or category of health care practitioner issuing the prescription or the venue or practice setting of the health care practitioner issuing the prescription, as long as the health care practitioner is licensed to prescribe medications.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Q the following section:-

Section 10R: (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“HIV”, human immunodeficiency virus.

“HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of HIV by the federal Food and Drug Administration, including any ancillary or support health

service determined by the secretary of health and human services that is necessary to: (1) ensure

that such a drug is prescribed or administered to a person who is not infected with HIV and has

no medical contraindications to the use of such a drug; and (2) monitor such a person to ensure

the safe and effective ongoing use of such a drug through: (i) an office visit; (ii) laboratory testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management and adherence counseling; (v) or any other health service specified as part of comprehensive HIV prevention drug services by the United States Department of Health and Human Services, the United States Centers for Disease Control and Prevention or the United States Preventive Services Task Force, or an equivalent state-authorized body with responsibility to identify health services that are components of comprehensive HIV prevention drug services.

(b) The division shall provide coverage for any HIV prevention drug: (1) without requiring (i) any cost-sharing, including co-payments or co-insurance, or any deductible, and (ii) prior authorization, step therapy or any other protocol that could restrict or delay the dispensing of any HIV prevention drug; and (2) shall not refuse, reject, or deny a prescription for any covered HIV prevention drug on the basis of the type or category of health care practitioner issuing the prescription or the venue or practice setting of the health care practitioner issuing the prescription, as long as the health care practitioner is licensed to prescribe medications.

SECTION 3. Chapter 127 of the General Laws is hereby amended by inserting after section 17D the following section:-

Section 17E:- (a) As used in this section, the following words shall have the following meanings, unless the context clearly requires otherwise:-

“HIV”, the human immunodeficiency virus.

“HIV Prevention drug,” any preexposure prophylaxis drug approved for the prevention of HIV by the federal Food and Drug Administration.

(b) The superintendent of each state correctional facility and the administrator of each county correctional facility, as defined in section one of Chapter 125, shall ensure that within reasonable time prior to release each inmate of a state correctional facility, and each inmate of a county correctional facility who has been committed to a term of 30 days or more, and who is negative for HIV infection: (1) be provided information and counseling about HIV prevention drugs to prevent HIV acquisition; (2) with the consent of the inmate, be evaluated for benefit from an HIV prevention drug; (3) for eligible inmates, and with the consent of the inmate, be provided with a supply of an HIV prevention drug prior to release. Such supply of an HIV prevention drug shall at the inmate’s option include the administration immediately prior to release of the longest duration injectable form of HIV prevention drug, a 90-day supply of an oral HIV prevention drug, other clinically appropriate HIV prevention drug, or a prescription for such supply to be filled post-release; and (4) be provided with information about requirements for medical monitoring after release to ensure the safe and effective ongoing use of such HIV prevention drug. Each correctional facility shall develop and implement a plan to connect each inmate receiving an HIV prevention drug pursuant to this paragraph to post-release medical and other services to ensure ongoing HIV prevention therapy upon return to the community.

(c) Any pre-release supply of an HIV prevention drug shall be provided at no cost to the inmate.

(d) Each correctional facility evaluating an inmate for an HIV prevention drug pursuant to paragraph (b) of this section shall ensure that information obtained in such evaluation be kept confidential between the inmate and medical provider and not shared with security or administrative staff.

(e) The Department of Public Health shall promulgate guidance for the implementation of this section.

SECTION 4. Chapter 175 of the General Laws is hereby amended by inserting after section 47 UU the following section:-

Section 47VV: (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“HIV”, human immunodeficiency virus.

“HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of HIV by the federal Food and Drug Administration, including any ancillary or support health

service determined by the secretary of health and human services that is necessary to: (1) ensure

that such a drug is prescribed or administered to a person who is not infected with HIV and has

110 no medical contraindications to the use of such a drug; and (2) monitor such a person to
111 ensure

112 the safe and effective ongoing use of such a drug through: (i) an office visit; (ii)
113 laboratory

114 testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management
115 and

116 adherence counseling; (v) or any other health service specified as part of comprehensive
117 HIV

118 prevention drug services by the United States Department of Health and Human Services,
119 the

120 United States Centers for Disease Control and Prevention or the United States Preventive
121 Services Task Force, or an equivalent state-authorized body with responsibility to identify health
122 services that are components of comprehensive HIV prevention drug services.

123 (b) Any individual policy of accident and sickness insurance issued under section 108
124 that provides hospital expense and surgical expense insurance and any group blanket or general
125 policy of accident and sickness insurance issued under section 110 that provides hospital expense
126 and surgical expense insurance, which is issued or renewed within or without the
127 commonwealth, and that provides coverage for any HIV prevention drug, shall not (1) require (i)
128 any cost-sharing, including co-payments or co-insurance, or any deductible, and (ii) prior
129 authorization, step therapy or any other protocol that could restrict or delay the dispensing of any
130 HIV prevention drug; or (2) refuse, reject, or deny a prescription for an HIV prevention drug on

the basis of the type or category of health care practitioner issuing the prescription or the venue or practice setting of the health care practitioner issuing the prescription, as long as the health care practitioner is licensed to prescribe medications.

SECTION 5. Chapter 176A of the General Laws is hereby amended by inserting after Section 8VV the following section:-

Section 8WW. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“HIV”, human immunodeficiency virus.

“HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of HIV by the federal Food and Drug Administration, including any ancillary or support health service determined by the secretary of health and human services that is necessary to: (1) ensure

that such a drug is prescribed or administered to a person who is not infected with HIV and has

no medical contraindications to the use of such a drug; and (2) monitor such a person to ensure

the safe and effective ongoing use of such a drug through: (i) an office visit; (ii) laboratory

testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management
and
adherence counseling; (v) or any other health service specified as part of comprehensive
HIV
prevention drug services by the United States Department of Health and Human Services,
the
United States Centers for Disease Control and Prevention or the United States Preventive
Services Task Force, or an equivalent state-authorized body with responsibility to identify health
services that are components of comprehensive HIV prevention drug services.

(b) A contract between a subscriber and the corporation under an individual or group
hospital service plan which provides hospital expense and surgical expense insurance, except
contracts providing supplemental coverage to Medicare or other governmental programs,
delivered, issued or renewed by agreement between the insurer and the policyholder, within or
without the commonwealth, which provides coverage for any HIV prevention drug shall not: (1)
require (i) any cost-sharing, including co-payments or co-insurance, or any deductible, and (ii)
prior authorization, step therapy or any other protocol that could restrict or delay the dispensing
of any HIV prevention drug; or (2) refuse, reject, or deny a prescription for an HIV prevention
drug on the basis of the type or category of health care practitioner issuing the prescription or the
venue or practice setting of the health care practitioner issuing the prescription, as long as the
health care practitioner is licensed to prescribe medications.

SECTION 6. Chapter 176B of the General Laws is hereby amended by inserting after
section 4VV the following section:-

172 Section 4WW. (a) As used in this section, the following words shall have the following
173 meanings unless the context clearly requires otherwise:-

174 “HIV”, human immunodeficiency virus.

175 “HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of
176 HIV by the federal Food and Drug Administration, including any ancillary or support
177 health
178 service determined by the secretary of health and human services that is necessary to: (1)
179 ensure
180 that such a drug is prescribed or administered to a person who is not infected with HIV
181 and has
182 no medical contraindications to the use of such a drug; and (2) monitor such a person to
183 ensure
184 the safe and effective ongoing use of such a drug through: (i) an office visit; (ii)
185 laboratory
186 testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management
187 and
188 adherence counseling; (v) or any other health service specified as part of comprehensive
189 HIV
190 prevention drug services by the United States Department of Health and Human Services,
191 the

United States Centers for Disease Control and Prevention or the United States Preventive Services Task Force, or an equivalent state-authorized body with responsibility to identify health services that are components of comprehensive HIV prevention drug services.

(b) Any subscription certificate under an individual or group medical service agreement, except certificates that provide supplemental coverage to Medicare or other governmental programs, issued, delivered or renewed within or without the commonwealth that provides coverage for any HIV prevention drug shall not: (1) require (i) any cost-sharing, including co-payments or co-insurance, or any deductible, and (ii) prior authorization, step therapy or any other protocol that could restrict or delay the dispensing of any HIV prevention drug; or (2) refuse, reject, or deny a prescription for an HIV prevention drug on the basis of the type or category of health care practitioner issuing the prescription or the venue or practice setting of the health care practitioner issuing the prescription, as long as the health care practitioner is licensed to prescribe medications.

SECTION 7. Chapter 176G of the General Laws is hereby amended by inserting after section 4NN the following section:-

Section 4OO. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“HIV”, human immunodeficiency virus.

“HIV prevention drug”, any preexposure prophylaxis drug approved for the prevention of HIV by the federal Food and Drug Administration, including any ancillary or support health

213 service determined by the secretary of health and human services that is necessary to: (1)
214 ensure
215 that such a drug is prescribed or administered to a person who is not infected with HIV
216 and has
217 no medical contraindications to the use of such a drug; and (2) monitor such a person to
218 ensure
219 the safe and effective ongoing use of such a drug through: (i) an office visit; (ii)
220 laboratory
221 testing; (iii) testing for a sexually transmitted infection; (iv) medication self-management
222 and
223 adherence counseling; (v) or any other health service specified as part of comprehensive
224 HIV
225 prevention drug services by the United States Department of Health and Human Services,
226 the
227 United States Centers for Disease Control and Prevention or the United States Preventive
228 Services Task Force, or an equivalent state-authorized body with responsibility to identify health
229 services that are components of comprehensive HIV prevention drug services.

230 (b) A health maintenance contract issued or renewed within or without the
231 commonwealth that provides coverage for any HIV prevention drug shall not: (1) require (i) any
232 cost-sharing, including co-payments or co-insurance, or any deductible, and (ii) prior
233 authorization, step therapy or any other protocol that could restrict or delay the dispensing of any

234 HIV prevention drug, provided, however, that co-payments, coinsurance or deductibles shall be
235 required if the applicable plan is governed by the Federal Internal Revenue Code and would lose
236 its tax-exempt status as a result of the prohibition on co-payments, coinsurance or deductibles for
237 these services; or (2) refuse, reject, or deny a prescription for an HIV prevention drug on the
238 basis of the type or category of health care practitioner issuing the prescription or the venue or
239 practice setting of the health care practitioner issuing the prescription, as long as the health care
240 practitioner is licensed to prescribe medications.

241 SECTION 8: Section 1 of chapter 94C, as amended by section 108 of chapter 140 of the
242 acts of 2024, is hereby amended by striking out clause (iii) and inserting in place thereof the
243 following clause:- (iii) said pharmacist's prescription for the treatment and prevention of
244 sexually transmitted infections, including those defined in regulation by the department pursuant
245 to section 121B of chapter 111 or for the prevention of HIV; or